

21CHCV00652 21CHCV00652

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 21CHCV00652 Hearing Date: August 4, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

AUGUST 3,

2026

MOTION FOR LEAVE TO FILE

CROSS-COMPLAINT

Los Angeles Superior Court Case # 21CHCV00652

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Motion

Filed: 4/7/26

MOVING

PARTY: Deborah

Ortiz dba R&D Waterproofing, Inc. ("Moving Defendant")

RESPONDING

PARTY: None

NOTICE:

OK

RELIEF

REQUESTED: An order granting Moving Defendant leave to file a cross-complaint against co-defendant Crossfield Products Corporation.

TENTATIVE

RULING: The unopposed motion is granted. Moving Defendant to separately file its proposed Cross-Complaint within 20 days of this order.

BACKGROUND

Plaintiff

Rreef America Reit II Corp. DD, a property owner, brings this action against Five Star Ontario Inc. ("Five Star") for an alleged breach of a service agreement wherein Five Star was to perform pool deck resurfacing work for Plaintiff at its property located at 28160 McBean Parkway, Valencia CA. Plaintiff alleges that Five Star failed to perform its obligations under the service agreement by failing to perform remedial measures to cure its previous defective workmanship. Five Star hired Moving Defendant as a subcontractor to resurface the deck at the subject property.

On

8/25/21, Plaintiff filed the instant action against three named Defendants, alleging the following causes of action: (1) Strict Liability; (2) Strict Liability (Component Products); (3) Negligence; (4) Breach of Contract; (5) Breach of Warranty; and (6) Breach of Implied Warranty. On 9/30/21, Moving Defendant filed its answer. On 7/15/22, defaults were entered against defendants Five Star and Crossfield Products Corp. ("Crossfield"). The default against Crossfield was later set aside, and Crossfield was later dismissed from the action on 10/6/22.

On 4/7/26, Moving Defendant filed the instant motion. No opposition has been filed to date.

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ANALYSIS

A defendant

or cross-defendant may file a cross-complaint against another “if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc. § 428.10, subd. (b).) If the proposed cross-complaint is compulsory, then leave must be granted so long as the defendant is acting in good faith. (Code Civ. Proc. § 426.50.)

Here, Moving

Defendant asserts that its proposed cross-complaint is compulsory, because “Defendant’s cross-claims for indemnity against Crossfield Products Corp. arise from the same transaction and occurrence as the subject Complaint. The cause of action existed at the time that Defendant served its answer to the complaint because Crossfield is the manufacturer of Miracote overlay. Moreover, Crossfield was also named in the original complaint before they were dismissed.” (Def.’s Mot. 6:5–9.) Moving Defendant further asserts that “no prejudice will result. Discovery is ongoing, and there have been no depositions of percipient witnesses, parties, experts or other fact witnesses.” (Id. at 6:14–15.)

Moving Defendant’s

proposed cross-complaint alleges against Crossfield the following causes of action: (1) Contribution; (2) Apportionment of Fault; (3) Declaratory Relief; (4) Implied Indemnity; and (5) Breach of Warranty of Workmanlike Services, Breach of Warranty for Fitness for a Particular Purpose, Breach of Warranty of Merchantability, Breach of Warranty, Breach of Express Warranty. (Ex. E to Decl. of Nardine Hanna.) The Court notes that no opposition has been filed against the instant motion. Accordingly, the Court finds that Moving Defendant is acting in good faith, and therefore, in the interest of justice, may file its proposed cross-complaint against Crossfield.

CONCLUSION

The unopposed
motion is granted. Moving Defendant to separately file its proposed
Cross-Complaint within 20 days of this order.